Ormond v Oral [2025] DIFC SCT 543

OCTOBER 16, 2025 SCT - JUDGMENTS AND ORDERS

Claim No: SCT 543/2025

THE DUBAI INTERNATIONAL FINANCIAL CENTRE COURTS

IN THE COURT OF FIRST INSTANCE

BETWEEN

ORMOND

Claimant/Respondent

and

ORAL

Defendant/Appellant

ORDER WITH REASONS OF H.E. DEPUTY CHIEF JUSTICE ALI AL MADHANI

UPON this claim being filed on 8 August 2025 and amended on 3 September 2025 (the "Claim")

AND UPON the Claimant's Application No. SCT-543-2025/1 dated 2 October 2025 seeking an order for the cancellation of his employment visa from the Defendant (the "Application")

AND UPON the Order with Reasons of H.E. Justice Maha Al Mheiri dated 3 October 2025 granting the Application (the "3 October Order")

AND UPON the Defendant's Appeal Notice dated 7 October 2025 seeking a variation of the 3 October Order (the "Appeal Notice")

AND UPON the Claimant's Application No. SCT-543-2025/3 dated 9 October 2025 filed as a response to the Appeal Notice

IT IS HEREBY ORDERED THAT:

1. The Appeal Notice is partially granted.

2. The 3 October Order shall be varied only to the effect of this Order.

3. The Defendant is to lift the absconding case on the Claimant within 7 working days from the date of issue of this Order.

4. The Defendant is to cancel the Claimant's visas without the Claimant signing the Waiver within 5 working days from the date of cancellation of the absconding case.

5. The Claimant is to cooperate with the Defendant for the purpose of the cancellation of the absconding case and relevant visas as far as statutorily obligated within the timelines dictated in paragraphs 3 and 4.

6. Paragraph 3 of the 3 October Order is dismissed and referred to the Small Claims Tribunal for further investigation and determination.

7. There shall be no order as to costs.

Issued by:

Hayley Norton
SCT Judge and Assistant Registrar
Date of Issue: 16 October 2025
At: 4pm

SCHEDULE OF REASONS

1. This Appeal Notice is brought by the Defendant seeking a variation of the Order of H.E. Justice Maha Al Mheiri dated 3 October 2025, which granted the Claimant's Application for an order for the cancellation of his employment visa (the "3 October Order").

2. The Claim arises from an employment dispute over the Defendant's alleged breaches of the employment contract between the parties, effective between 2 December 2024 and 8 August 2025. The resolution of the Claim remains pending until the hearing dated 25 November 2025 before H.E. Justice Maha Al Mheiri.

3. In the Application, the Claimant submits that the Defendant refused to proceed with the cancellation of his and his dependents' visas until the Claimant signed an employment cancellation acknowledgment letter (the "Waiver"), confirming that all dues were settled. The Claimant's position is that this would effectively prevent him from pursuing his Claim.

4. In response to the Claimant's refusal to sign the Waiver, the Defendant raised an absconding case.

5. In the 3 October Order, which granted the Claimant's request for visa cancellation without signing the Waiver and determined the Defendant's liability on future fines, penalties and related costs, Justice Maha Al Mheiri made her determination without the Application being fully pleaded pursuant to RDC 53.72 on the basis of urgency.

6. In its Appeal Notice, the Defendant submits that the Claimant's conduct is the reason for the delay in his visa cancellation, as he was uncooperative contrary to Article 57(3) of the DIFC Employment Law. The Defendant was compelled to file the absconding case as a result of the Claimant's attempt to leave the UAE on 1 October 2025 while still under sponsorship and without satisfying his statutory obligations to cancel the relevant visas. This narrative was mischaracterised by the Claimant in his Application, and as the Defendant was not given the opportunity to file its response to the Application therefore the Judgment was flawed. The facts are heavily contested, including facts concerning the Claimant's dates of employment, obstruction to insurance processes, characterisation of DEWS entitlement, negotiations of a new contract and attempts to an amicable resolution. Therefore, Justice Maha Al Mheiri's application of RDC 53.72 and failure to consider the defence in any capacity constitutes procedural unfairness that has allowed the Claimant to make threats amounting to procedural opportunism against a small business.

7. Further, the Defendant objects to the Claimant's characterisation of the Waiver. This is submitted to be a standard DIFC/GDRFA system-generated cancellation acknowledgement that would not prejudice the pursuit of the Claim. Without view of the Waiver, Justice Maha Al Mheiri determined that it was injurious and made inferences as to the Defendant's conduct without hearing a defence.

8. Finally, the Defendant contests the cancellation deadline of 5 days in the 3 October Order, submitting this timeframe to be unworkable as 2 of those 5 days were non-working days, and the Claimant's dependent is currently outside the UAE. Additionally, the absconding report must be first formally withdrawn before requests for visa cancellations can be filed. It would be impossible to comply with the Order within the ordered timeframe, notwithstanding the Claimant's repeated failure to comply with his own obligations to cancel the relevant visas.

9. In my view, the Application was neither urgent nor suitable for determination without notice to the Defendant as the resolution of the Claim remains ongoing until after the hearing on the 25 November 2025. In the interim, applications concerning visa cancellations and absconding cases are factual disputes that require a full pleading from both parties, and liability of 'future fees' as described in paragraph 3 of the Order cannot be determined until after the opportunity for a fully pleaded investigation.

10. However, in consideration of the defence and the pleadings made for the Application, the Defendant is still obligated to cancel the Claimant's residency visas within 30 days of the Termination Date as per Article 57(3) of the DIFC Employment Law. This time has now lapsed, irrespective of the actual and alleged termination date, and so the Defendant is ordered to cancel all relevant residency visas attached to the Claimant's employment without signing the Waiver as the issue as to whether the Waiver is procedurally sound remains a live issue before the Court. Additionally, the Claimant is ordered to cooperate as far as legally required to ensure that the relevant visas can be cancelled. This includes providing all mandatory documentation and attending required appointments at the designated time on the designated dates.

11. As a precursor to the visa cancellation, the Defendant is also ordered to lift the absconding case. I shall not determine the merits of the absconding case here; this issue is for the hearing dated 25 November 2025.

12. Further, I shall dispense with addressing the merits of the issues raised in the Appeal Notice. This Order is intended to correct the procedural irregularities in the 3 October Order only, and not to be used to prejudice the positions of either party and the issues raised therein which shall be fully pleaded and considered at the 25 November 2025 Hearing.